WELYAT

Terms of Service

Effective Date: April 1, 2026 • Version 1.2 • Governing Law: State of Delaware, USA

support@welyat.com | welyat.com/privacy

1. Overview

These Terms of Service ("Terms") govern your access to and use of the Welyat platform ("Platform", "we", "us", "our"). By creating an account or using Welyat in any way, you acknowledge that you have read, understood, and agree to be bound by these Terms and our Privacy Policy. If you do not agree, you must discontinue use immediately.

Welyat is a peer-to-peer voice connection platform providing anonymous active listening between independent users. The Platform operates exclusively within the United States.

> Welyat is NOT any of the following:
> • A licensed therapy, counseling, or medical service
> • A crisis intervention or emergency response provider
> • A legal advisory or financial advisory service
> • A substitute for professional mental health treatment

2. Eligibility & Age Restriction

You must be at least 18 years of age to access or use the Platform. By using Welyat, you represent and warrant that you meet this requirement.

- Age Verification: Welyat requires age confirmation at registration. Users must affirmatively confirm they are 18 or older. Providing false age information is a material breach of these Terms and grounds for immediate termination.
- Listener Validation: Listeners must complete a voice validation process before being listed on the Platform.
- Independent Contractor Status: Listeners operate as independent contractors and are solely responsible for their own taxes, equipment, and compliance with applicable law.
- Minor Access: If we discover a minor has accessed the Platform, we will terminate the account immediately and permanently delete all associated data in accordance with applicable law, including COPPA.
- Suspension & Termination: Welyat reserves the right to suspend or terminate accounts at its sole discretion, at any time, for any reason or no reason, with or without notice, subject to Section 14.

3. Nature of the Service — Non-Therapeutic

Welyat provides human active listening only. Listeners are not licensed therapists, psychologists, medical doctors, counselors, or legal professionals. Nothing exchanged on this Platform constitutes professional advice of any kind.

⚠ **IMPORTANT SAFETY NOTICE**

IF YOU ARE EXPERIENCING ANY OF THE FOLLOWING, STOP AND CONTACT EMERGENCY SERVICES NOW:

- Suicidal thoughts, self-harm ideation, or any form of crisis
- Any immediate threat to your safety or the safety of others
- A medical or psychiatric emergency

EMERGENCY: Call 911 | Suicide & Crisis Lifeline: Call or text 988 | Crisis Text Line: Text HOME to 741741

Welyat does not monitor calls in real time and CANNOT dispatch emergency services.

Welyat assumes no liability for any psychological, emotional, physical, or other outcomes resulting from use of the Platform. Use at your own risk.

4. Pricing Structure

Paid sessions are billed at $19.99 per hour, calculated per second with no rounding up.

- Billing is based exclusively on server-side call duration (Twilio infrastructure is the authoritative time source).
- There is no subscription model and no auto-renewal of any kind.
- Billing ceases immediately and permanently when the call ends.
- Users are never billed for time beyond the exact active duration of their session.

If payment fails at any point during an active session:

- The call ends immediately.
- No debt is created. No negative balance is ever permitted on any account.
- No invoice or collection action will be initiated.

5. Free Session Credit & Connection Attempt Policy

Each caller receives a 15-minute Free Session Credit per session. This credit is a shared time balance across all connection attempts within a single session and does not roll over to future sessions.

Purpose of this structure:

- Protect listener time and availability
- Prevent connection abuse and bad-faith attempts
- Maintain the economic stability of the Platform

5.1 Attempts 1, 2, and 3 — Grace Period

For the first three connection attempts within the same session, a 2-minute grace period applies per attempt:

- The first 2 minutes of each attempt are NOT deducted from the 15-minute credit.
- If the call ends within 2 minutes: no time is deducted.
- If the call continues beyond 2 minutes: only the time after minute 2 is counted.

> Formula: Counted Free Time = max(0, Attempt Duration − 2 minutes)

5.2 Attempt 4 — Immediate Counting

- No grace period applies on the 4th attempt.
- Time counting begins immediately upon connection.
- If the Free Session Credit is already exhausted, paid billing begins immediately at the per-second rate.

5.3 Practical Examples

Example A — Credit exhausted before Attempt 4:

  - Attempt 1 = 6 min → counted: 4 min
  - Attempt 2 = 7 min → counted: 5 min
  - Attempt 3 = 10 min → counted: 8 min
  - Total counted: 17 min. Credit (15 min) exhausted — Attempt 4 starts in paid mode immediately.

Example B — Partial credit remaining on Attempt 4:

  - Attempts 1–3 total = 12 min counted.
  - Remaining credit: 15 − 12 = 3 min.
  - Attempt 4: first 3 min are free, then paid billing begins per second.

5.4 Conversion to Paid Mode

Once the Free Session Credit reaches zero, the following applies:

- The caller must explicitly and affirmatively choose to continue the session before paid billing begins.
- Paid billing begins at $19.99/hour, calculated per second with no rounding.
- The user is never billed beyond the exact duration of the active session.

5.5 Connection Integrity Fee (Bridge Fee)

A $0.10 Connection Integrity Fee applies upon successful call connection. This fee is disclosed to the user prior to initiating a call and must be accepted before the connection is established.

- This fee is non-refundable once the connection is established.

- It does NOT apply if the call fails to connect (busy signal, no answer, technical failure).
- It is not a subscription fee and does not grant additional session time.
- If the call ends before minute 10, no additional charges beyond the $0.10 Connection Integrity Fee apply.

5.6 Billing Authority & Server-Side Time Control

All session timing is measured and enforced server-side. The authoritative time source is the Twilio telecommunications infrastructure.

- Client-side timers and device clocks are informational only and carry no billing authority.
- If a discrepancy exists between device records and server records, the server record prevails.
- Time measurement cannot be paused, altered, or manipulated by the user.

5.7 No Debt Policy

Welyat operates under a strict no-debt policy. No user account may carry a negative balance under any circumstances.

- If payment authorization fails during an active session, the call is terminated immediately.
- No additional time is granted after a failed payment.
- No outstanding invoice is generated and no debt collection will be initiated.

5.8 Listener Independent Contractor Status

Listeners operate as independent contractors. Nothing in these Terms creates an employment relationship, partnership, joint venture, agency relationship, or employer-employee structure of any kind between Welyat and any Listener.

Listeners:

- Control their own availability and may go online or offline at will
- Provide and maintain their own equipment
- Are solely responsible for their own federal, state, and local taxes
- Are solely responsible for their own insurance, including health and liability insurance
- Are not entitled to employee benefits of any kind, including health benefits, workers' compensation, unemployment insurance, or paid leave

Compensation is based solely on completed and validated session time as recorded by server-side infrastructure. Listeners are fully and exclusively responsible for compliance with all applicable federal, state, and local tax and labor regulations.

5.9 Emergency Disclaimer

The Platform is a peer-to-peer active listening service only. Listeners are not licensed therapists, medical professionals, crisis counselors, or legal advisors. The service does not and cannot provide medical diagnosis, psychological treatment, emergency intervention, crisis management, or legal advice.

If a user is experiencing a medical, psychiatric, or personal safety emergency, they must contact 911 or the 988 Suicide & Crisis Lifeline (call or text 988) immediately.

The Platform does not monitor calls in real time and is technically and operationally incapable of dispatching emergency services. Users assume full and sole responsibility for their personal safety while using the Platform.

5.10 Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE PLATFORM, ITS FOUNDERS, OPERATORS, OFFICERS, EMPLOYEES, AFFILIATES, AGENTS, AND SERVICE PROVIDERS SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES OF ANY KIND, INCLUDING BUT NOT LIMITED TO:

- Emotional distress or psychological harm
- Loss of income, profits, or business opportunity
- Reputational damage
- Business interruption
- Data loss or corruption
- Personal injury or death arising from misuse of the Platform

> TOTAL LIABILITY CAP: The Platform's total aggregate liability to any user for any and all claims arising out of or relating to these Terms or use of the Platform shall not exceed the total amount paid by that user during the three (3) calendar months immediately preceding the event giving rise to the claim.
>
> If no payment was made during that period, the Platform's total liability is capped at zero dollars ($0.00).
>
> This limitation applies regardless of the legal theory under which the claim is brought (contract, tort, statute, or otherwise) and even if the Platform has been advised of the possibility of such damages.
>
> Some jurisdictions do not allow the exclusion or limitation of certain damages. In such jurisdictions, the above limitations apply to the fullest extent permitted by law.

5.11 Indemnification

You agree to indemnify, defend, and hold harmless Welyat, its founders, officers, directors, employees, contractors, affiliates, licensors, and service providers from and against any and all claims, liabilities, damages, judgments, awards, losses, costs, expenses, and fees (including reasonable attorneys' fees) arising out of or relating to:

- Your misuse of the Platform or any violation of these Terms
- Your violation of any applicable federal, state, or local law or regulation
- Any content or information you share or disclose during sessions
- Any attempt to circumvent the billing system or move communication or payment outside the Platform
- Any false representation you made in connection with your registration or use of the Platform

This indemnification obligation survives termination of your account and these Terms.

5.12 Arbitration & Class Action Waiver

PLEASE READ THIS SECTION CAREFULLY. IT AFFECTS YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO FILE A LAWSUIT IN COURT.

Any dispute, controversy, or claim arising out of or relating to these Terms, the Platform, or the relationship between the parties shall be resolved exclusively through binding arbitration administered by the American Arbitration Association ("AAA") under its Consumer Arbitration Rules, as amended from time to time. Proceedings shall be conducted in the English language in the State of Delaware, United States.

By using the Platform, you and Welyat each waive:

- The right to a jury trial
- The right to participate in any class action, class arbitration, or collective action
- The right to consolidate claims with those of any other user or party

Arbitration shall be conducted on an individual basis only. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

Exception: Either party may seek emergency injunctive or other equitable relief from a court of competent jurisdiction to prevent immediate irreparable harm, without waiving the right to arbitrate the underlying dispute.

If the class action waiver is found unenforceable in a particular jurisdiction, then this entire arbitration section shall be void with respect to users in that jurisdiction, and any disputes shall be resolved in the courts specified in Section 6.

5.13 Assumption of Risk & Personal Safety

Welyat facilitates anonymous connections between users. Your phone number is masked via Twilio's data masking technology and is never revealed to other users. However, you are solely and exclusively responsible for any personal information, identifying details, or other sensitive data you choose to disclose verbally during a call.

Welyat is not responsible for any interactions, communications, or consequences arising from information you voluntarily disclose during sessions. Never share personal information such as your full name, address, financial information, or location during calls.

6. Governing Law & Jurisdiction

These Terms are governed by and construed exclusively in accordance with the laws of the State of Delaware, United States of America, without regard to its conflict of law provisions.

For any dispute not subject to arbitration under Section 5.12, you consent to the exclusive jurisdiction and venue of the state and federal courts located in the State of Delaware. You waive any objection to jurisdiction, venue, or inconvenient forum in those courts.

Welyat operates exclusively within the United States. Access to the Platform from outside the United States is at the user's own risk and subject to all applicable local laws and regulations. Welyat makes no

representation that the Platform or these Terms comply with the laws of any jurisdiction outside the United States.

7. Modifications to These Terms

Welyat reserves the right to update or modify these Terms at any time. When we make material changes, we will:

- Notify registered users via email and in-app notification at least 14 days before the changes take effect.
- Update the "Effective Date" and "Version" at the top of this document.
- Require affirmative re-acceptance (a click-through confirmation) upon first login after material changes take effect.

Your continued use of the Platform after the effective date of any updated Terms, including by clicking "I Agree" when prompted, constitutes your full acceptance of those changes. If you do not agree to the updated Terms, you must discontinue use immediately and may request account deletion at support@welyat.com.

8. Refund Policy

Due to the real-time, irreversible nature of the service, all consumed paid session time is final and non-refundable.

If a verified technical issue occurs on our end:

- You must report the issue to support@welyat.com within 24 hours of the session end.
- A verified technical issue is defined exclusively as a platform-side failure confirmed by server logs (e.g., unexpected call termination caused by Welyat infrastructure), and does not include user device issues, user internet connectivity failures, or voluntary disconnection.
- The investigation outcome and any credit issued are at Welyat's sole reasonable discretion. Credits, if issued, are applied to your account and are not transferable or redeemable for cash.

9. Listener Compensation

- Listeners are compensated per second, based on the listener_rate_per_min rate published in the Listener Dashboard at the time of the session.
- Payouts are made via weekly bank transfer, typically processed within 5–7 business days.
- Only confirmed and validated ledger balances are eligible for payout. Disputed or under-investigation amounts are held pending resolution.
- Listeners are solely responsible for their own taxes, equipment, professional licenses (if any), and full legal compliance as independent contractors.
- Welyat reserves the right to withhold payout in cases of confirmed Terms violations, fraud, or pending legal proceedings, subject to applicable law.

10. XP System (Non-Guaranteed Discretionary Bonus)

- XP is generated only during free (unpaid) sessions.

- XP has no guaranteed monetary value and does not constitute wages, compensation, or debt owed by Welyat.
- XP Value is calculated monthly, based on a floating exchange rate tied to Platform performance, and is entirely at Welyat's discretion.
- Welyat reserves the right to modify, suspend, or permanently discontinue the XP program at any time. When possible, Welyat will provide at least 30 days' prior notice before discontinuing the XP program, except in cases of fraud, abuse, or legal necessity.
- Accumulated XP has no cash equivalent and cannot be transferred, sold, or redeemed outside the Platform.

11. Data Collection, Privacy & Third-Party Partners

Your privacy is a priority. This section summarizes how we handle your data. For full details, please refer to our Privacy Policy at welyat.com/privacy. In the event of a conflict between this Section and the Privacy Policy, the Privacy Policy controls.

11.1 Anonymous Connection & Data Masking

We use Twilio's data masking technology. Your real phone number is encrypted and masked. The other party will only ever see a generic Welyat system number. Your private phone number is never revealed to other users under any circumstances.

11.2 Third-Party Data Processors

We share minimal data with the following trusted processors, solely as necessary to operate the Platform:

- Twilio (Telephony): Processes your phone number solely to route calls securely. Subject to Twilio's Privacy Policy.
- Stripe (Payments): Processes all financial transactions. Welyat never stores full credit card numbers on our servers. Subject to Stripe's Privacy Policy.

11.3 No Call Recording

We do not record, monitor, store, or access the audio content of your conversations in any form. We retain only technical metadata (date, time, duration) strictly for billing accuracy and legal compliance purposes.

11.4 Data Retention

Session metadata (date, time, duration) is retained for a maximum of 12 months for billing and dispute resolution purposes, after which it is permanently and irreversibly deleted from our systems.

11.5 User Rights (CCPA / VCDPA / Other Applicable Law)

If you are a resident of California, Virginia, Colorado, Connecticut, Utah, or any other state with applicable privacy laws, you have the following rights:

- Right to request access to the personal data we hold about you
- Right to request correction of inaccurate data
- Right to request deletion of your personal data, subject to legal retention obligations

- Right to opt out of any future data sharing (note: we do not sell personal data)
- Right to non-discrimination for exercising any of the above rights

To exercise any of these rights, contact us at support@welyat.com. We will respond within 45 days of receipt, as required by applicable law.

We do not sell, rent, or trade personal data to third parties for commercial purposes.

11.6 Cookies & Tracking Technologies

Our website and Platform may use cookies, web beacons, and similar tracking technologies to operate, secure, and improve the service. By using the Platform, you consent to the use of such technologies as described in our Privacy Policy. You may manage cookie preferences through your browser settings or our cookie consent tool.

12. Intellectual Property

All content, branding, software, technology, features, and materials comprising or associated with Welyat are the exclusive property of Welyat and its licensors, and are protected by applicable intellectual property laws.

Regarding call content:

- Welyat does not record calls and therefore asserts no ownership over verbal content exchanged during sessions.
- Users retain full responsibility for any content they voluntarily share verbally.
- No content exchanged during a session may be reproduced, recorded by any third party, shared, or published outside the Platform without the explicit prior written consent of all parties involved.

You may not copy, modify, reverse engineer, disassemble, distribute, sell, sublicense, or create derivative works of any part of the Platform without Welyat's express prior written consent.

13. Prohibited Use

The following are strictly prohibited on or in connection with the Welyat Platform. Engaging in any prohibited use may result in immediate account termination and potential legal action.

- Abusive language, harassment, intimidation, or threats toward any user or Listener
- Any form of illegal activity, including solicitation, fraud, or exploitation
- Any attempt to move payment or communication outside the Platform
- Impersonation of licensed professionals (therapists, doctors, lawyers, etc.) or of Welyat staff
- Unauthorized recording of any session audio
- Any attempt to exploit, manipulate, circumvent, or abuse the billing, session, or credit system
- Access or use by any person under 18 years of age
- Use of automated scripts, bots, or any non-human access to the Platform
- Sharing or publishing the personal information of any other user

14. Account Termination

Either party may terminate a user account at any time, for any reason or no reason, subject to the following:

Welyat may suspend or terminate your account immediately and without prior notice if:

- You violate any provision of these Terms
- We detect fraudulent, abusive, deceptive, or illegal activity
- A minor is found to have accessed the account
- Continued operation of your account poses a risk to other users or to the Platform

Upon termination:

- Access to the Platform is revoked immediately and permanently.
- Any unused Free Session Credit is forfeited without compensation.
- Listener balances that have been confirmed and validated will be paid out on the next regular weekly transfer cycle, net of any amounts subject to active dispute or investigation.
- Personal data will be deleted in accordance with our data retention policy (Section 11.4) and applicable law.
- Termination does not relieve you of any obligations or liabilities incurred prior to termination, including indemnification obligations.

15. Accessibility

Welyat is committed to making the Platform accessible to all users, including those with disabilities, in compliance with applicable law including the Americans with Disabilities Act ("ADA") and Section 508 of the Rehabilitation Act, to the extent applicable. If you encounter any accessibility barriers, please contact us at support@welyat.com and we will work to address your needs.

16. Severability, Waiver & Entire Agreement

If any provision of these Terms is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, that provision will be modified to the minimum extent necessary to make it enforceable, or severed if modification is not possible, without affecting the validity and enforceability of the remaining provisions.

Welyat's failure to enforce any right or provision of these Terms does not constitute a waiver of that right or provision.

These Terms, together with the Privacy Policy and any other policies expressly incorporated by reference, constitute the entire agreement between you and Welyat with respect to your use of the Platform, and supersede all prior and contemporaneous agreements, representations, and understandings.

17. Contact

For any questions, disputes, technical issues, or legal notices regarding these Terms:

Email: support@welyat.com
Privacy Policy: welyat.com/privacy
Legal / Arbitration Notice: support@welyat.com (Subject: Legal Notice)

Crisis Resources — If you are in crisis:
Emergency Services: 911 | Suicide & Crisis Lifeline: 988 | Crisis Text Line: Text HOME to 741741

By continuing to use the Welyat Platform, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service and our Privacy Policy.